duty of court in relation to the directives came to be emphasized in the later decision which reached its culmination in the *Kesavananda Bharati* case[83] (1973) laying down certain broad propositions. Law of these is that there is no disharmony between the directives and the fundamental rights because they supplement each other on aiming at the same goal of bringing about a social revolution and the establishment of a welfare state, which is envisaged in the preamble. The courts, therefore, have responsibility in so interpreting the Constitution as to ensure implementation of the directives and to harmonise the social objective underlying the directives with individual rights."

Similarly, the Supreme Court, while applying the doctrine of harmonious construction to the interpretation of the different entries of the legislative lists in the Seventh Schedule, made the following observation[84]:

"It is also well settled that widest amplitude should be given to the language of the entries, but some of the entries in the different lists or in the same list may overlap and sometimes may also appear to be in direct conflict with each other. It is then the duty of this Court to reconcile the entries and bring about harmony between them. In this way it may, in most cases, be found possible to arrive at a reasonable and practical construction of the language of the sections, so as to reconcile the respective powers they contain and to give effect to all of them. It is only when such a reconciliation proves impossible, then, and only then, should the overriding power of the Union legislature, the *non-obstante* clause, operate and the Union power prevail."

3. Important Cases

The important cases relating to the doctrine of harmonious construction and their judgements are given in Table 94.6.

DOCTRINE OF LIBERAL INTERPRETATION

1. Meaning of the Doctrine

According to the doctrine of liberal interpretation, the constitution must be interpreted in a broad and liberal manner and not in a narrow or pedantic sense. In other words, a broad and liberal spirit should inspire the interpreters of the constitution.

The doctrine of liberal interpretation envisages that the constitution should be interpreted not as a mere law but as the machinery by which the laws are to be made. It assumes that the constitution is a living and organic thing and hence, it must be interpreted broadly and liberally.

While explaining the doctrine of liberal interpretation, Justice Higgins made the following observation[85]:

"Although we are to interpret the words of the Constitution on the same principles of interpretation as we apply to any ordinary law, these very principles of interpretation compel us to take into account the nature and scope of the Act we are interpreting—to remember that it is a Constitution, a mechanism under which laws are to be made, and not a mere Act which declares what the law is to be."

The Supreme Court has explained the doctrine of liberal interpretation in the following way[86]:

"A constitutional provision is never static, it is ever evolving and ever changing and, therefore, does not admit of a narrow, pedantic or syllogistic approach. It seems well settled that constitutional provisions